

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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CHAD ROSE,

Plaintiff,

-against-

THE CITY OF NEW YORK, a municipal corporation;
POLICE OFFICER CHARLES ARNONE (Shield Number
3642), in his individual and official capacities; POLICE
OFFICER FRANK BEERS (Shield Number 17641), in his
individual and official capacities; POLICE OFFICER
STEVEN FURSA (Shield Number 13278), in his
individual and official capacities; and POLICE OFFICER
PAUL MALLILO (Shield Number 13570), in his
individual and official capacities.

Defendants.
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COMPLAINT

JURY TRIAL DEMANDED

15-CV-

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of plaintiff's rights under the Constitution.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343 and 1367(a).

4. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

5. This Court has supplemental jurisdiction over the New York State claims pursuant to 28 U.S.C. § 1367.

JURY DEMAND

6. Plaintiff demands a trial by jury in this action.

PARTIES

7. Plaintiff Chad Rose (“plaintiff” of “Mr. Rose”) is an African-American male and was at all relevant times a citizen of Kings County in the City and State of New York.

8. Defendant, the City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

9. Defendant, the City of New York, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

10. At all times hereinafter mentioned, the individually named defendants, Police Officers Charles Arnone, Frank Beers, Steven Fursa and Paul Mallilo were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

11. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant City of New York.

13. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant City of New York.

FACTS

14. On October 21, 2014, at approximately 5:10 p.m., plaintiff was lawfully standing in front of 1040 Nostrand Avenue, Brooklyn, New York.

15. Plaintiff was lawfully standing on the corner in conversation with friends.

16. Police officers approached plaintiff and placed him under arrest.

17. Plaintiff was told by said police officers that he was being arrested for “assaulting a female”; the officers gave him no further details about this allegation.

18. When plaintiff arrived at the 71st Precinct, Brooklyn, New York, plaintiff was told by the police officers that he was in fact being arrested for an incident that allegedly occurred October 14, 2014, at approximately 11:50 p.m., in front of 1040 Nostrand Avenue, Brooklyn, New York.

19. On October 14, 2014, at approximately 11:50 p.m., plaintiff was at his home at 350 Sterling Street, Apartment 6G, Brooklyn, New York, not in front of 1040 Nostrand Avenue, Brooklyn, New York.

20. At no point did the officers observe plaintiff commit a crime.

21. On or about October 22, 2014, plaintiff was charged with violating Penal Law Section 221.40, Criminal Sale of Marijuana in the Fourth Degree; Penal Law Section 221.10(1), Criminal Possession of Marijuana in the Fifth Degree; and Penal Law Section 221.05, Unlawful Possession of Marijuana.

22. Prior to his arraignment on October 22, 2014, plaintiff spent approximately twenty four (24) hours in police custody.

23. On February 11, 2015, all charges against plaintiff were dismissed by the Honorable Michael Gerstein, Kings County Criminal Court, Part AP4, upon oral motion by the

Kings County District Attorney's Office.

24. As a result, the plaintiff's criminal case was dismissed and sealed.

25. Mr. Rose suffered damage as a result of defendants' actions. Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, anxiety, embarrassment, humiliation, and damage to his reputation.

FIRST CLAIM
Unlawful Stop and Search

26. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

27. Defendant police officers violated the Fourth and Fourteenth Amendments because they stopped and searched plaintiff without reasonable suspicion.

28. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SECOND CLAIM
False Arrest

29. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

30. Defendant police officers violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

31. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

THIRD CLAIM
Malicious Prosecution

32. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

33. By their conduct, as described herein, and acting under color of state law,

defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

34. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.

35. As a direct and proximate result of defendants' unlawful actions, plaintiff has suffered, and will continue to suffer, damages, including mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

FOURTH CLAIM
Denial of Constitutional Right to Fair Trial

36. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

37. The individual defendants created false evidence against plaintiff.

38. The individual defendants forwarded false evidence to prosecutors in the Kings County District Attorney's Office.

39. In creating false evidence against plaintiff, and in forwarding false information to prosecutors, the individual defendants violated plaintiff's right to a fair trial under the Due Process Clause of the Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

40. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FIFTH CLAIM
Negligent Hiring, Training and Retention

41. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

42. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the

conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

43. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

44. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.

45. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retraining these defendants proximately caused each of plaintiff's injuries.

46. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SIXTH CLAIM
Negligent Infliction of Emotional Distress

47. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

48. By reason of the foregoing, the individual defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each was negligent in committing conduct that inflicted emotional distress upon plaintiff.

49. The negligent infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

50. Defendants, their officers, agents, servants, and employees were responsible for the negligent infliction of emotional distress upon plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

51. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiff sustained the damages hereinbefore alleged.

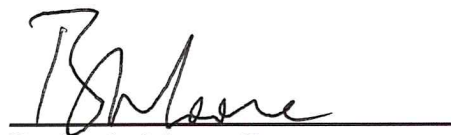
PRAYER FOR RELIEF

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. §1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

Dated: September 18, 2015
Brooklyn, New York

MOORE ZEMAN WOMBLE, LLP

A handwritten signature in black ink, appearing to read "B. Moore", is written over a horizontal line.

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